

shall be filed and served **within ten (10) days of notice of entry of this order.**

6. 9:00 AM CASE NUMBER: L25-04765

CASE NAME: ANA RODRIGUEZ VS. WATERS LAUNDRIES, INC.

*HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CCP 664.6 BY
PLTFS ON 9-30-25

FILED BY: RODRIGUEZ, ANA

TENTATIVE RULING:

Plaintiffs Ana Rodriguez and Mailyn Johana De Leon Rabanales (“Plaintiffs”) filed a Motion to Enforce Settlement Agreement on September 30, 2025 (“Motion to Enforce Settlement Agreement”). The Motion to Enforce Settlement Agreement was set for hearing on December 30, 2025.

Background

Plaintiffs and defendant _ (“Defendant”) entered into that certain Confidential Mutual Release Agreement dated November 26, 2024 (the “Settlement Agreement”). See Declaration of Emily G. Horrigan filed September 30, 2025 (the “Supporting Declaration”), ¶2; see also Settlement Agreement attached as **Exhibit 1** to Plaintiffs’ Notice of Lodgment filed October 9, 2025.

The Settlement Agreement provides for a settlement payment of \$15,000 (the “Settlement Payment”) by a certain date:

2. Settlement Payment. Claimants shall be entitled to the following consideration from Respondent for the promises and agreements set forth herein. By August 11, 2024, and upon delivery of W-9 forms from Claimants and Claimants’ counsel, Respondent will pay Claimants a total settlement amount of Fifteen Thousand Dollars (\$15,000.00) (the “Settlement Payment”). The Settlement Payment will be delivered to the offices of Claimants’ counsel at 1801 Century Park East, Suite 850, Los Angeles, CA 90067 and allocated as follows:

Settlement Agreement, ¶2.

The numbers do not add up and are riddled with errors. Although the Settlement Agreement specifies a \$15,000 Settlement Payment, the Supporting Declaration appears to erroneously refer to a \$10,000 payment. See Supporting Declaration, ¶2.

12 Fees and Costs, Totaling \$11,736.50. The Settlement Agreement provides payment of
13 \$10,000.00 to settle Plaintiffs’ individual claims, paid by August 11, 2024, and upon delivery of
14 W-9 forms. Because the Settlement Agreement was not fully executed until November 26, 2024,

Plaintiffs’ papers contend that “Defendant owes \$10,000.00 to Plaintiffs, including attorneys’ fees **and costs.**” See MPA, p. 7, Ins. 26-27 (emphasis added). Yet, confusingly, the motion papers also refer to the \$15,000 settlement amount in other places. See e.g. MPA, p. 6. Moreover, by Plaintiffs’ own stated figures, the \$10,000 stated in the MPA does not include costs if the total were actually \$11,736.50 as stated later in the papers (see below).

Plaintiffs’ papers later state that Defendant owes “\$6,000.00 principle [sic] contractual payment

due Plaintiffs under the Settlement Agreement, as well as \$4,000.00 in attorney fees, **and \$1,736.50 costs** related to this enforcement action, for a total judgment of \$11,736.50.” See MPA, p. 11 (emphasis added). The \$1,736.50 referenced in the MPA is not simply “costs,” but appears to be the total of attorneys’ fees (\$1,513.60) and costs (\$222.90).* See Supporting Declaration, ¶13.

Importantly, the \$6,000 principal stated in the MPA appears to be inaccurate. The only \$6,000 principal amount referenced in the agreement is the attorneys’ fees portion. See Settlement Agreement, ¶2 [“One check made payable to "Melmed Law Group, P.C." for Six Thousand Dollars (\$6,000)]. Nothing in the Supporting Declaration suggests that this was the only unpaid amount.

The principal amount due under Settlement Agreement appears to be the three (3) \$3,000 payments plus the \$6,000 attorneys’ fees portion, which total the \$15,000 set forth in Paragraph 2 of Settlement Agreement. See Settlement Agreement, ¶2.

The Supporting Declaration appears to represent that no payments were made by Defendant. See Settlement Agreement, ¶5. So it is not clear to the Court why the principal balance due would be some figure other than the \$15,000 settlement amount.

*The Court further notes that the Supporting Declaration fails to include a total of the referenced costs, requiring the Court to “do the math.” See Supporting Declaration, ¶13. And in doing the math, it appears that the referenced cost items (\$77.70, \$15.70 and \$129.50) total \$222.90. Plaintiffs’ figure of \$11,736.50 appears to be the total of \$222.90 in costs, attorneys’ fees of \$1,513.60 and a purported \$10,000 in principal. Thus, the “\$1,736.50 costs” stated in the MPA is actually the total of the referenced attorneys’ fees and costs is (\$1,513.60 plus \$222.90).

The Court denies the motion without prejudice to resubmission with clarification of the accounting.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Motion to Enforce Settlement Agreement is DENIED, without prejudice.
2. In the exercise of the Court’s discretion, the clerk of the Court is directed to set the matter for a Case Management Conference (CMC) and give notice to the parties of the CMC.